

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 HOUSE JOINT
5 RESOLUTION 1044

By: Lepak of the House

and

Bergstrom of the Senate

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9 AS INTRODUCED

10 A Joint Resolution directing the Secretary of State
11 to refer to the people for their approval or
12 rejection a proposed amendment to Section 8B of
13 Article X of the Constitution of the State of
14 Oklahoma; decreasing the limitation of growth on the
15 fair cash value of a parcel that qualifies for a
16 homestead exemption or is classified as agricultural
17 land for ad valorem purposes; providing ballot title;
18 and directing filing.

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20 BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES AND THE SENATE OF THE
21 2ND SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

22 SECTION 1. The Secretary of State shall refer to the people for
23 their approval or rejection, as and in the manner provided by law,
24 the following proposed amendment to Section 8B of Article X of the
25 Constitution of the State of Oklahoma to read as follows:

26 Section 8B. Despite any provision to the contrary, on and after
27 January 1, ~~2013~~ 2027, the fair cash value of any parcel of locally
28 assessed real property shall not increase by more than five percent

1 (5%) in any taxable year; provided, if such property qualified for a
2 homestead exemption or is classified as agricultural land, any
3 increase to the fair cash value of such locally assessed real
4 property in a taxable year shall be limited to ~~three percent (3%)~~
5 two percent (2%). The provisions of this section shall not apply in
6 any year when title to the property is transferred, changed, or
7 conveyed to another person or when improvements have been made to
8 the property. If title to the property is transferred, changed, or
9 conveyed to another person, the property shall be assessed for that
10 year based on the fair cash value as set forth in Section 8 of
11 Article X of this Constitution. If any improvements are made to the
12 property, the increased value to the property as a result of the
13 improvement shall be assessed for that year based on the fair cash
14 value as set forth in Section 8 of Article X of this Constitution.
15 The provisions of this section shall not apply to any personal
16 property which may be taxed ad valorem or any property which may be
17 valued or assessed by the State Board of Equalization.

18 The Legislature shall enact any laws necessary to implement the
19 provisions of this section.

20 SECTION 2. The Ballot Title for the proposed Constitutional
21 amendment as set forth in SECTION 1 of this resolution shall be in
22 the following form:

23 BALLOT TITLE

24 Legislative Referendum No. _____ State Question No. _____

1 THE GIST OF THE PROPOSITION IS AS FOLLOWS:

2 This measure amends Section 8B of Article 10 of the Oklahoma
3 Constitution. This measure decreases the limit on the annual
4 increase of the fair cash value of certain real property for ad
5 valorem tax purposes. Currently in the Constitution, the fair
6 cash value of real property that is used for agricultural
7 purposes or that qualifies for a homestead exemption may not
8 increase by more than three percent (3%) each year. This
9 measure would reduce that annual increase to two percent (2%).

10 SHALL THE PROPOSAL BE APPROVED?

11 FOR THE PROPOSAL — YES _____

12 AGAINST THE PROPOSAL — NO _____

13 SECTION 3. The Chief Clerk of the House of Representatives,
14 immediately after the passage of this resolution, shall prepare and
15 file one copy thereof, including the Ballot Title set forth in
16 SECTION 2 hereof, with the Secretary of State and one copy with the
17 Attorney General.

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19 COMMITTEE REPORT BY: COMMITTEE ON RULES, dated 03/05/2026 - DO PASS,
20 As Amended and Coauthored.

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